

unjust. Here, both sides acted with substantial justification. Guarantor had a legitimate basis to seek discovery from Plaintiff's leasing broker concerning mitigation and related issues, even though the subpoena as served was overbroad in several respects. Colliers, in turn, raised legitimate concerns about scope, burden, and confidentiality, and engaged in meet and confer, even though it could have been more specific in quantifying burden and more proactive in proposing tailored alternatives. Neither party's conduct warrants sanctions. Thus, the Court **DENIES** both Guarantor's request for \$5,460.00 and Colliers' cross-request for \$8,025.00.

Ruling: GRANT IN PART and DENY IN PART Defendant Noor Group, LLC's Motion to Compel Compliance with Subpoena Duces Tecum as follows:

- **PMQ Deposition. GRANT** limited to January 31, 2022 to the present, subject to protective order.
- **RPD Nos. 1–2. GRANT as modified.** Colliers shall produce the operative written agreements between Colliers and Plaintiff governing Colliers' brokerage services concerning the Property from January 31, 2022 to the present, including executed listing agreements, commission or fee agreements, and any amendments, extensions, or modifications thereto, within ____ days. Ancillary communications, drafts, negotiation records, and invoices duplicative of information available from Plaintiff are excluded.
- **RPD Nos. 3–10. QUASH** without prejudice to Guarantor serving properly tailored requests identifying specific transactions, agreements, or categories tied to identified issues in dispute.
- **RPD Nos. 11–13. GRANT** for the period as served (February 1, 2022 to the present), subject to search terms and protective order.
- **Sanctions. DENIED** both sides' requests for monetary sanctions.

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CASE #	CASE NAME	HEARING NAME
CVRI2500269	FREEMAN vs HERN	MOTION TO COMPEL

Tentative Ruling:

The unopposed motion to compel a response to the request for production is granted. Defendant is to provide a verified response, without objection within 20 days. Sanctions are awarded in the amount of \$510.